

1 Craigrothie Village Hall Contract of Hire

1.1 Before booking, hirers must read and agree to these conditions of use:

These “Conditions of Use” form a Contract of Hire and apply to all hirings for Craigrothie Village Hall (CVH). If additional Conditions of Use are deemed to be required for some bookings; these will be advised at time of acceptance of the booking.

It is important that you read these Conditions of Use fully, as they require you to accept specific responsibilities and liabilities. It is your responsibility to fully understand what is required – please ask a member of the CVH committee if you are unclear.

The Contract of Hire takes effect from receipt of payment. Scottish Law governs the contract in all respects.

1.2 General

Any part of the building is available for hire for any lawful purpose, but the CVH Committee reserves the right to refuse a booking request without giving any reason. The hirer shall not use the premises (including the car park) other than described in the hiring agreement and shall not sub-hire the premises.

Reservations by people aged less than 21 years old cannot be accepted.

In the event of a dispute arising regarding a booking/hire, the CVH Committee’s decision will be final and binding.

The CVH Committee reserves the right to amend the Contract of Hire and Conditions of Use and Schedule of Hire Charges at any time.

The hirer is defined as the person/organisation booking the hall/facilities.

This document forms the basis of the hirer’s contract.

The Hirer agrees to only use the areas of the hall, which they have booked. The kitchen shall only be used for tea and coffee preparation. Full kitchen use is by separate hire agreement.

1.3 Payment

Casual lets such as parties, weddings, one-off meetings and events (referred to as “**commercial let’s**”), will be required to pay the booking fee and deposit in full at least 14 days prior to the date of the event. Regular bookings for community events (referred to as “**community lets**”) will be charged at the subsidised rates as set out in Craigrothie Village Hall website, and payment will be due within 7 days of the start of the hire period.

1.4 Health and Safety

The Hirer is solely responsible for the Health & Safety of persons attending their activity/event. Nothing shall be done, nor shall anything be brought on to the premises, which may create a risk to the building or its occupants.

The Hirer must be at the hall personally throughout the period of the let. Under the terms of any hire, the Hirer is classed as the person responsible for fire safety and must ensure all persons attending the activity/event are aware of the location of fire exits and what to do in the case of a suspected fire.

The Hirer and all attendants must be acquainted and comply with the CVH’s Health and Safety Risk Assessment, including location of fire exits and what to do in the case of a suspected fire. The hirer acknowledges they understand the following:

- The action to be taken in event of a fire, including calling the fire brigade and evacuating the hall
- The location and use of fire equipment
- Escape routes and the need to keep them clear
- The location of all fire-exits and that they must be kept clear at all times

The Hirer is also responsible for reporting of any accidents and defects. A basic First Aid Kit is situated in the kitchen.

There is no telephone line at the hall. The hirer is responsible for the availability of a mobile during the period of hire.

1.5 Legal

Smoking and the use of vapour cigarettes are not allowed in any part of the building at any time.

The hirer shall not allow the premises to be used for any unsuitable purpose or in any unlawful way nor do anything or bring onto the premises anything which may endanger or render invalid any insurance policies in respect thereof nor allow the consumption of alcohol without written permission or legal authority. The Hirer must obtain a liquor licence if they intend to supply or sell alcohol either directly or indirectly during an event at which a charge is made.

It is the Hirer's responsibility to check with Fife Council whether they require a liquor, entertainment, gaming, and/or a market operator's licence.

When applicable and to comply with the Public Entertainments Licence, the Hirer should have sufficient competent attendants on duty on the premises to assist people entering and leaving and supervising the event.

The Hirer shall ensure that nothing is done on or in relation to the premises in contravention of the law relation to gaming, betting and lotteries. It is the Hirer's responsibility to understand and comply with these laws.

Additional attendants are required if those participating are mostly teenagers and young people.

Hirers of the hall who are holding events and/activities for children and vulnerable adults shall take all necessary precautions for their safety and ensure that all requirements of Disclosure Scotland PVG Scheme are complied with.

The CVH Committee accepts no responsibility or liability for loss or damage to any stored equipment or other property brought on to or left at the Hall. All equipment and other property must be removed at the end of each hiring, unless by prior agreement with the CVH Committee. The CVH Committee reserves the right to make additional charges for any property not removed. No responsibility will rest with the hall, the CVH Committee or hall volunteers should any damage and/or loss occur.

We are obliged by Fife Council to recycle all waste or we incur extra charges. Users are required to dispose of waste in the correct containers supplied throughout the hall. Failure to do so will incur additional charges being levied.

The Hirer shall, if preparing, serving, or selling food, observe all the relevant food health and hygiene legislation regulations and register under The Food Safety Act with Fife Council.

Contact the Food, Work & Safety Team at Fife Council [03451 555555](tel:03451555555) for guidance.

1.6 Hirers' Responsibilities

The Hirer will, during the period of hiring, be responsible for supervision of the premises, the fabric and the contents, their care, safety from damage and the behaviour of all persons using the premises, whatever their capacity. Any person suspected of being drunk, under the influence of drugs or who is behaving in a violent or disorderly way shall be asked to leave the premises in accordance with the Licensing Scotland Act, and the police may be called.

Children are not permitted in the kitchen.

The Hirer will be responsible for ensuring any electrical equipment brought into the hall is in good working order and has a valid Portable Appliance Test Certificate (PAT). Equipment not covered by a PAT certificate cannot be used.

No unauthorised heating appliances shall be used without the consent of the CVH committee.

The Hirer shall also ensure that all sub-contracted activities such as mobile discotheques, bands etc. are fully insured against public liability for their operation and any electrical equipment has a valid PAT certificate.

Smoke machines may not be used in the hall under any circumstances. The use of fireworks, sparklers, candles, or naked flames is not permitted.

When booking, please ensure you have allowed sufficient time for preparation and clearing up and that is reflected in the total period of hire needed. Access to the Hall will only be allowed at the start time specified on the hire agreement and the premises should be vacant at or before the end time, so as not to interfere with the needs of other users.

The CVH Committee shall regulate the maximum occupancy of the various rooms within the hall, and it is the responsibility of the Hirer to ensure these agreed numbers are not exceeded.

The hall will be provided to the Hirer in a clean and functional condition. It is the responsibility of the Hirer to return the premises to an equivalent condition at the end of the hire, including sweeping the floors (unless an alternate agreement is in effect) cleaning the kitchen (when used) and that all waste is properly deposited in the correct containers or segregated and bagged in bin liners should the containers be full.

All tables, chairs and other equipment should be returned to their original position as found.

Failure to do so will incur an automatic additional charge of £50

The Hirer is responsible for making sure that the hall is not left unattended and unsecured at any time during, or at the end of the hire period.

The hirer shall pay in full for all damage (including accidental damage and malicious) to the hall, fixtures, fittings, or contents and for loss of contents. The hirer shall be liable for all claims, losses, damages, and costs made against or incurred by the CVH Committee arising as a result of the use of the premises by the hirer. The hirer must notify the CVH Committee immediately of any damage to the hall or its contents incurred during the hire period.

At the end of the hire please ensure that all lights and electrical appliances are switched off. Ensure all windows and outside doors are secured, including emergency exit doors.

1.7 Entry to the Hall

Entry to the hall is gained by a key which is stored in a key lock box. Regular users will be issued with the key lock box code at the start of their hire period. The key must always be returned to the key lock box at the end of the day hire period.

Individuals and/or groups who hire the hall for one-off events will be advised when they will receive the key lock box code. At the end of a single use hire the Hirer should confirm they have left and secured the premises via email.

1.8 Cancellations

The CVH Committee reserves the right to cancel a booking if deemed necessary for any reason. The Hirer will be offered an alternative time and or date for their booking. Should that prove not to be feasible, a full refund of all monies paid for the cancelled booking will be given.

If the hirer wishes to cancel the booking and receive a full refund the CVH Committee must be notified more than 14 days before the date of the event. If the hirer chooses to cancel a booking and notifies the CVH Committee less than 15 days before the event date, the hirer will only receive a 50% refund unless a suitable alternative date is confirmed with the CVH Committee. A full refund of the monies paid shall be at the discretion of the CVH Committee.

1.9 Parties, Functions, Weddings etc.

On receipt of your booking request, you will be contacted to discuss your requirements. In addition to the agreed hire charge for parties and functions etc. a security deposit of a minimum of £100 will also be required. This deposit is held against any potential damage or loss incurred to the premises and/or contents by the Hirer or Persons associated with the activity/event.

The CVH Committee reserves the right to increase the amount of security deposit at their discretion. The Security deposit will normally be repaid in full within 14 Days after the event unless damage, loss has occurred or extra cleaning is deemed necessary. In that instance the cost of making good the damage/loss and/or the extra cleaning will be deducted before any refund is given. Should the cost of repair, replacement etc, exceed the total of the security deposit paid, the CVH Committee reserves the right to charge the Hirer for any additional costs incurred. The Hirer will need to provide the bank details for returning the Security deposit.

1.10 Internet Usage

The CVH Committee has a policy for the use of the internet whereby all users of Craigrothie Village Hall must ensure that they comply with current legislation, use the internet in an acceptable way and do not create unnecessary risk to CVH by their misuse of the internet.

It is the Hirer's responsibility to ensure their attendees understand and comply with the following conditions of use of the internet whilst on CVH premises:

Attendees must not participate in any of the following actions as they are deemed to be unacceptable use.

- Visit internet sites that contain obscene, hateful, pornographic, or otherwise illegal material
- Use the computer to perpetrate any form of fraud, or software, film, or music piracy
- Use the internet to send offensive or harassing material to another person
- Download commercial software or any copyrighted materials belonging to third parties, unless this download is covered or permitted under a commercial agreement or other such licenses
- Access unauthorised areas
- Publish online defamatory and/or knowingly false material

Craigrothie Village Hall - Hirer's Agreement

1. Opening and Closing of the Hall

- a) The village hall code for entry will be available from..... and after locking up, must be notified of your departure or
- b) The village hall will be opened for your hiring by and will be closed for you at the time you have indicated.
- c) Please ensure that any outside caterers, contractors, and bar staff are aware of the hire period and that they will not be able to enter before or leave after the hire period.
- d) Contact in case of difficulty.
- e) Guests are expected to vacate the premises within fifteen minutes of the end of a licensed period.

2. Safety

To avoid any injury, the trolleys provided for moving chairs and tables should be used for that purpose. Do not leave the table trolley unattended/unsecured whilst erecting tables, and please stack chairs and tables in the storeroom in the manner they were found and as shown on the notice, securing tables into the appropriate wheeled storage trolley(s), with straps provided.

3. Power circuits/heating

The heating is controlled by the CVH committee. Please let the CVH committee know if you need the Hall to be a particular heat for your hire period. Do not adjust heating unless guidance has been given by a member of the CVH committee.

4. Craigrothie Village Hall Telephone

CVH does not have a telephone, we recommend you bring a fully charged mobile telephone for your use.

Purpose of Hire

Hirer Name

Contact Address

Contact Email..... Contact Phone No.....

Is this a recurring booking: Yes No If applicable - Frequency of hire.....

Date/s of Hire:

Start time of hire..... End time of hire.....

By agreeing to the Terms & Conditions of Hall Hire and the information on the Hirer's Agreement the Hirer accepts this as a contract to hire Craigrothie Village Hall. This contract can be digitally signed, or downloaded, signed and scanned to CVH or printed, signed and posted to CVH.

I the Hirer accepts ALL T & Cs Date.....
(Signature of individual or representative of group)

Above details accepted and confirmed by Date.....
(Print name of CVH committee member)